ARRANGEMENT OF SECTIONS

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FIFTH SCHEDULE: Prescribed fees.

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IT is hereby notified that the Minister of Transport and Infrastructural Development has, in terms of section 81 of the Road Traffic Act [*Chapter 13:11*], made the following Regulations: —

Title and date of commencement

1. (1) These regulations may be cited as the Road Traffic (Licensing of Drivers) Regulations, 2023.

(2) These regulations shall come into operation on the dates of publication of these regulations.

Interpretation

2. In these regulations—

"codes D and DE" when used in relation to a motor vehicle, means an omnibus and an omnibus with a trailer;

(a) used for the carriage of persons; and

(b) having more than sixteen seats in addition to the driver's seat; and

(c) may be combined with a trailer;

"codes D1 and D1E" when used in relation to a motor vehicle, means an omnibus and an omnibus with a trailer;

(a) used for the carriage of persons; and

(b) having more than eight seats but not more than sixteen in addition to the driver's seat; and

(c) may be combined with a trailer;

"codes C and CE" when used in relation to a motor vehicle, means a motor vehicle—

(a) not less than seven thousand five hundred kilograms gross mass; and

(b) adapted or designed for the carriage of goods; and

(c) may be combined with a trailer; and

(d) propelled by mechanical, electrical or any alternative power and includes—

(i) an ambulance;

(ii) an articulated vehicle adapted or designed for the carriage of goods;

(iii) a breakdown van;

(iv) a fire-engine;

(v) a hearse; and

(vi) a motorized caravan;

exceeding two thousand three hundred kilograms' net mass and propelled by mechanical power;

"codes A, B1 and A1" when used in relation to a motor vehicle, means a motorcycle;

"codes B1" when used in relation to a motor vehicle, means a quadricycle;

"codes B, BE" when used in relation to a motor vehicle means a motor vehicle, other than a motor vehicle adapted or designed for the carriage of goods or passengers or both and includes—

(a) an ambulance; and

(b) an articulated vehicle adapted or designed for the carriage of goods, and

may draw a light trailer; and

(c) a breakdown van; and

(d) a fire-engine; and

(e) a hearse; and

(f) a motorized caravan.

not exceeding two thousand three hundred kilograms net mass and any motor vehicle, other than an omnibus or motorcycle, propelled by mechanical or electrical power;

"code BÊ" when used in relation to a motor vehicle, means agricultural/industrial/construction tractors propelled by mechanical or electrical power;

"form" means the appropriate form prescribed by these regulations and referred to in the First Schedule;

"quadricycle" when used in relation to a motor vehicle, means a motorized cycle that has four wheels and steered by handle bars;

"qualified person" means a registered medical practitioner, registered dental surgeon, registered optician, or registered psychologist.

Tractor driver's permits

3. (1) An authority given in terms of subsections (1) and (2) of section 8 of the Act for the issue of a tractor driver's permit shall be on form R.T.L.D.1.

(2) An authority given in terms of subsection (1) and (2) of section 8 of the Act for the issue of a tractor driver's permit shall—

(a) for a period of thirty days from the date on which such authority was given; or

(b) until the person to whom the issue of a tractor drivers permit was authorised has been given the tractor drivers permit in terms of subsection (6) of that section, whichever is the sooner, be deemed to be a holder of a tractor drivers permit.

(3) A tractor drivers permit or duplicate tractor drivers permit shall be on form R.T.L.D. 2.

(4) A farmer or miner or his or her manager or a industrialist and related manager, as the case may be, to whom a tractor driver permit has been surrendered in terms of subsection (7) of section 8 of the Act, shall transmit to the Registrar with the tractor drivers permit particulars of the reasons for such surrender.

Learner's licence

4. (1) A person applying in terms of subsection (1) of section 9 of the Act for a learner's licence shall transmit to the examiner concerned with his or her application and the fee referred to in subsection (3) of section 12—

(a) every licence held by such applicant; and

(b) if such examiner so requests, documentary proof of the date of birth of such applicant; and

(c) two specimen signatures of such applicant on specimen signature slips; and

(d) subject to the provisions of section 17, three photographs of such applicant:

Provided that, if such applicant is the holder of a driver's licence which bears his/her photograph, such applicant shall transmit such drivers licence in lieu of such photographs.

(2) No person shall apply in terms of subsection (1) of section 9 of the Act of a learner's licence in respect of Codes D, D1, DE and D1E motor vehicles unless he or she has for a continuous period of not less than—

(a) five years held a licence, other than a learner's licence, in respect of Codes C, C1, CE and C1E motor vehicles; or

(b) five years held a licence, other than a learner's licence, in respect of codes B and BE motor vehicles.

(3) A learner's licence shall be on form R.T.L.D. 3, R.T.L.D. 3a (for motor omnibus) or on an electronically generated form R.T.L.D. 3b.

(4) A learner's licence shall be valid—

(a) in the case of a learner's licence deemed to be held for the purpose of subsection (8) of section 10 of the Act, for the period of validity of the driver's licence concerned; or

(b) in the case of a learner's licence other than a learner's licence referred to in paragraph (a), for a period of 12 months from the date of issue of such learner's licence.

(5) The holder of a learner's licence shall—

(a) If he or she is the holder of a learner's licence issued in respect of Codes D, DE, D1 and D1E motor vehicles, be deemed to be the holder of the learner's licence issued

in respect of Codes D, DE, D1 and D1E motor vehicles; or

(b) if he or she is the holder of a learner's licence issued in respect of A, A1, B1, B, BE, and BÊ motor vehicles, be deemed to be the holder of a learner's licence issued in respect of Code A, A1, B1, B, BE, and BÊ motor vehicles respectively.

(6) An examiner shall not issue a learner's licence in respect of—

(a) any class of motor vehicle to an applicant who is under the age of sixteen years; or

(b) a class of motor vehicle to which construction vehicles or heavy vehicles belong to or an applicant under the age of eighteen years in respect of codes BÊ; or

(c) a class of motor vehicle which is a passenger public service vehicle unless he or she has a driving experience of not less than 5 years and age of not less than 25 years.

Dimensions of "L" plates

5. (1) Every plate referred to in paragraph (b) of subsection (8) of section 9 of the Act shall be one hundred and fifty millimeters square.

(2) The letter L on a plate referred to in subsection (1) shall have the dimensions indicated in the figure set out in the Second Schedule.

Certificates of competency

6. (1) A person applying in terms of subsection (1) of section 10 of the Act for a certificate of competency shall transmit to the examiner concerned with his/her application and the fee referred to in subsection (4) of section 12—

(a) his or her learner's licence;

(b) in the case of an applicant who is the holder of a driver's licence and is deemed in terms of subsection (8) of section 10 of the Act to be the holder of a learner's licence, the

driver's licence, and two specimen signatures of such applicant on specimen signature slips.

(2) A Certificate of competency issued in terms of subsection (2) of section 10 of the Act shall be on form R.T.LD. 4 or an electronical generated R.T.LD. 4a.

(3) A certificate of competency shall, for a period of thirty days from the date on which the certificate of competency was issued, be deemed in terms of subsection (4) of section 10 of the Act to be a driver's licence issued in respect of the class of motor vehicle specified in the certificate of competency.

Drivers' licences

7. (1) A driver's licence shall be on form R.T.LD.5.

(2) Subject to the provisions of section 7 of the Act, the holder of a driver's licence referred to in subsection (8) of section 10 of the Act shall be deemed—

(a) if he or she is the holder of a driver's licence issued in respect of Codes A, A1 and B1 motor vehicles, to be the holder of a learner's licence issued in respect of Codes B, B1 and BÊ motor vehicle; or

(b) if he or she is the holder of a driver's licence issued in respect of Codes B and BE motor vehicles, to be the holder of a learner's licence issued in respect of Codes A, A1, B1, BÊ, C, C1and C1E motor vehicle; or

(c) if he or she is the holder of a driver's licence issued in respect of Codes C, C1, CE and C1E motor vehicles, to be the holder of a learner's licence issued in respect of Codes A, A1, BÊ and B1 motor vehicles; or

(d) if he or she is the holder of a driver's licence issued in respect of Code BÊ motor vehicles, to be the holder of a learner's licence issued in respect of Codes A, A1, B, B1 and BE motor vehicles for the purpose of obtaining the required additional certificate of competency; or

(e) if he or she is the holder of a driver's licence issued in respect Codes D, D1, D1E and DE motor vehicles, to

be the holder of a learner's licence issued in respect of codes A, A1, B1, C1, C1E and CE motor vehicles for the purpose of obtaining the required additional certificate of competency.

(3) Subject to the provisions of section 7 of the Act, the holder of a driver's licence issued in respect of—

(a) Codes D and DE motor vehicles shall be deemed to be the holder of a driver's licence issued in respect of codes BÊ, D, D1 and D1E motor vehicles; or

(b) Codes C and CE motor vehicles shall be deemed to be the holder of a driver's licence issued in respect of Codes BÊ, C1 and C1E motor vehicles; or

(c) Codes B, BE, D1 and D1E motor vehicles shall be deemed to be the holder of a driver's licence issued in respect of BÊ motor vehicles.

(4) An examiner, inspecting officer or police officer who is the holder of a driver's licence issued in respect of Codes C, C1, CE and C1E motor vehicles shall be deemed to be the holder of a driver's licence issued in respect of Codes D1, D1E, D and DE motor vehicles while he or she is driving a D class motor vehicle while he/she is driving in exercise or performance of any of the power and duties conferred or imposed, as the case may be, on him or her by or under any enactment.

(5) The holder of a driver's licence issued in respect of Codes C, C1, CE and C1E motor vehicles shall be deemed to be the holder of a driver's licence issued in respect of Codes D and DE motor vehicles while he or she is driving a D class motor vehicle which—

(a) is not carrying passengers; or

(b) is carrying persons all of whom are being carried solely for the purpose of effecting repairs to the Codes D and DE motor vehicle.

Medical or optical examinations and certificates

8. (1) No person other than a qualified person shall—

(a) conduct an examination or test referred to in paragraph (a) of subsection (1) of section 12 of the Act; or

(b) grant a medical or optical certificate referred to in paragraph (b) of subsection (1) of section 12 of the Act.

(2)—

(a) a person who is to be examined or tested or who seeks such medical or optical certificate has produced to the qualified person his or her learner's licence or drivers licence bearing his or her photograph; or

(b) if the person who is to be examined or tested or who seeks such medical or optical certificate is not the holder of a learner's licence or drivers licence bearing his or her photograph, the qualified person is satisfied that such person is the person who has been required in terms of subsection (1) of section 12 of the Act to undergo such examination or test or to produce to the examiner concerned such medical or optical certificate.

(3) A medical or optical certificate referred to in paragraph (b) of subsection (1) of section 12 of the Act shall be on form R.T.L.D. 6.

Special medical certificates

9. (1) A person other than a qualified person shall not grant a special medical certificate to a person wishing to obtain an endorsement referred to in subsection (1) of section 13 of the Act.

(2) A qualified person shall not grant a special medical certificate to a person wishing to obtain an endorsement referred to in subsection (1) of section 13 of the Act until such person has produced to the qualified person his or her learner's licence or drivers licence bearing his or her photograph.

(3) A special medical certificate shall be on form R.T.L.D. 6.

Duplicate learners' licences and drivers' licences

10. (1) A person applying in terms of subsection (1) of section 14 of the Act for a duplicate learner's licence or drivers' licence shall

transmit to the Registrar with his or her application and the appropriate fee referred to in subsection (5) of section 12—

(a) two specimen signatures of such applicant on a specimen signature slip; and

(b) subject to the provisions of section 17, two photographs.

(2) Upon receipt of the application, the Registrar or authorised officer, in terms of subsection (2) of section 14 of the Act shall produce a duplicate learner's licence or drivers' licence—

(a) on form R.T.LD. 7; and

(b) call on such holder to apply within a period of thirty days from the date of service on such holder of such notice for a duplicate learner's licence or drivers' licence in terms of subsection (1) of that section.

Applications for drivers' licences

11. A person applying in terms of subsection (1) of section 19 of the Act for a driver's licence shall transmit to the Registrar with his or her application and the fee referred to in subsection (6) of section 12—

(a) two specimen signatures of such applicant on a specimen signature slip or electronically generated signature; and

(b) subject to the provisions of section 17, two photographs or electronically generated photographs of such applicant; and

(c) his or her international driving permit or foreign drivers' licence and, if the Registrar so requires, a translation of its contents in the English language and a confirmation letter from the issuing authority in the case of a foreign licence:

Provided that on conversion of a foreign driver's licence, the registrar shall re-issue to the holder corresponding codes in respect of the tendered foreign drivers' licence and in the absence of such, shall be determined by the Registrar.

Prescribed fees

12. Prescribed fees shall be provided for in the fifth Schedule.

Application for certificate of competency and licence

13. A person applying in terms of—

(a) subsection (1) of section 9 of the Act for a learner's licence; or

(b) subsection (1) of section 10 of the Act for a certificate of competency; or

(c) subsection (1) of section 14 of the Act for a duplicate learner's licence or driver's licence; or

(d) subsection (1) of section 19 of the Act for a driver's licence;

shall do so on form R.T.LD. 9.

Period within which an application may be made for an inquiry

14. A person applying in forms of subsection (4) of section 9, subsection (3) of section 10 or subsection (3) of section 12 of the Act to a magistrate for the holding of an inquiry shall do within a period of thirty days from the refusal concerned.

Endorsement of licence

15. (1) Whenever conditions are imposed in terms of subsection (5) of section 9 of the Act on the issue of a learner's licence or in terms of subsection (4) of section 10 of the Act on the issue of a certificate of competency—

(a) the examiner concerned shall endorse on the learner's licence, or

(b) the Registrar shall endorse on the driver's licence issued in respect of the certificate of competency;

as the case may be, the code number set out in the first column of Part 1 of the Third Schedule relating to the appropriate condition set out opposite there to in the second column of that Part.

(2) Whenever the Registrar endorses a licence in terms of Part Vll of the Act, he or she shall do so by endorsing on the learner's licence or drivers licence the code letter set out in the first column of Part II of the Third Schedule relating to the appropriate reason for

such endorsement set out opposite thereto in the second column of that Part.

Photographs

16. (1) A photograph required by these regulations to be transmitted to an examiner or the Registrar shall—

(a) have been recently taken and being in black and white or electronically generated; and

(b) be clear-cut and without shadows; and

(c) measure neither more than forty millimeters by thirty millimetres nor less than thirty millimetres by twenty-five millimetres; and

(d) show a width of face of not more than twenty-five millimetres, measured from the outer extremity of the left ear to the outer extremity of the right ear; and

(e) show the full face without headgear:

Provided that, if the person photographed so requests on bona fide religious ground, such photograph may merely show that portion of the face extending from the hairline on the forehead to the tip of the chin and from the front of the left ear to the front of the right ear; and

(f) be identical to every other photograph required to be transmitted with the same application.

(2) If at a time when any photographs are requested in these regulations to be transmitted to an examiner or the Registrar and the person shown in the photographs is unable to present himself or herself to the examiner or the Registrar, one of the photographs shall be endorsed on the reverse side by another person—

(a) to whom the person so shown is personally known; and

(b) who is of professional or similar standing, a prominent citizen or a person holding responsible post in the service of the State or a municipal council;

to the effect that such photograph is a true likeness of the person depicted therein.

False statement

17. A person who on a form makes a statement which—

(a) he or she knows to be false; or

(b) does not know or reasonably believe to be true;

shall be guilty of an offence.

Drivers' licences issued prior to the 1st October, 1967 to change to (Before SADC Drivers Licence Go Live Date)

18. A person holding a driver's licence to drive a motor vehicle on a road, which driver's licence was issued prior to the 1st October, 1967 (Before SADC Drivers Licence Go Live Date) and related to a class of motor vehicles as defined in section 31 of the Road and Road Traffic (Registration and licensing) Regulations, 1961, published in Rhodesia Government Notice No. 278 of 1961, prior to that date and specified in the first column of the Fourth Schedule, shall be deemed to be a holder of a drivers licence issued in respect of the class of motor vehicles specified opposite thereto in the second column of that Schedule.

Repeals and savings

19. (1) The regulations specified in the Sixth Schedule are repealed.

(2) Notwithstanding the provisions of Subsection (1), any matter lawfully made, done or commenced under a provision of a Road and Road Traffic (Drivers Licences) Regulation, 1970, published in Zimbabwe Government Notice No. 732 of 1970, which matter, immediately before the date of commencement of these regulations, was of, or was capable of acquiring, force or effect, as the case may be, and shall be deemed to have been made, done or commenced under these regulations.

FIRST SCHEDULE (*Sections 3, 4, 6, 7, 8, 10*)

FORMS

R.T.L.D. 1 Authority for issue of tractor driver's permit.

R.T.L.D. 2: Tractor drivers permit.

R.T.L.D. 3 Learner's licence.

R.T.L.D. 3a (Codes D, DE Licence)(manually generated).

R.T.L.D. 3b (Codes D, DE Licence) (Electronically generated).

R.T.L.D. 4 Certificate of competency.

R.T.L.D. 4a Certificate of competency (Electronically generated).

R.T.L.D. 5. Driver's licence.

R.T.L.D. 6 Medical or optical certificate or special medical certificate.

R.T.L.D. 7 Notice to apply for duplicate learner's licence or drivers licence.

R.T.L.D. 8. Receipt for fee accompanying application for learner's licence or certificate or competency.

R.T.L.D.9 Application for certificate of competency or licence.

R.T.L.D.9.A Application for learner licence.

Defensive drivers licence.

Note: Copies of the forms referred to in this Schedule may be inspected free of charge in terms of section 5(2) of the Interpretation Act [*Chapter 1*] at all—

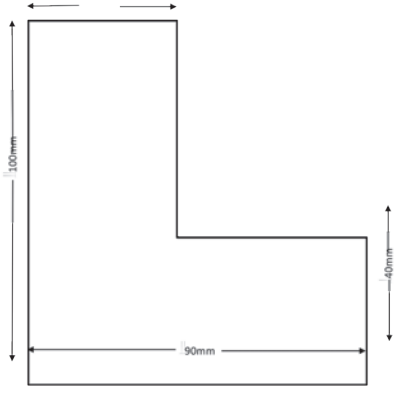
(a) offices of registering officers;

(b) police stations;

(c) Vehicle Inspectorate Department in Zimbabwe.

SECOND SCHEDULE (*Section 5 (2)*

DIMENSIONS OF LETTER "L" ON "L" PLATE



THIRD SCHEDULE (*Section* 15)

CODE NUMBERS AND CODE LETTERS T0 BE ENDORSED ON LICENCES

PART I

CODE NUMBERS

Code number	Condition imposed on issue of learner's licence or certificate of competency.
1.	Adaptation of motor vehicle and automatic vehicle limited to physically challenged persons accompanied by a doctor's medical report RTLD 6.
2.	Personal conditions (relating to artificial limbs, corrective spectacle lenses, etc).

PART II

CODE LETTERS

Code letter	*Offence or order*
A.	Driving without due care and attention or reasonable consideration for others section 42 (1) of Act).
B.	Reckless driving (section 44 (1) of Act).
C.	Negligent driving (section 43 (1) (a) of Act).
D.	Driving at a speed dangerous to the public (section 43 (1) (6) of Act.
E.	Driving in a manner dangerous to the public (section 4 (1) (6) of Act).
F.	Driving while under influence of alcohol or drug or both (section 46 (1) of Act).
G.	Offence in terms of any other law by or in connection with driving of a motor vehicle road (section 55 of Act).
H.	Other offence.
I.	Failure to carry out duly in event of accident (section 6I (2) of Act).
J.	Driving with prohibited concentration of alcohol in blood (section 45 (1) of Act).

K. Failure or refusal to take breath test or to permit taking of specimen of blood (section 67 (2) or 68 (6)) of Act).

L. Prohibition from driving for specified period or during lifetime.

FOURTH SCHEDULE (*Section 18*)

CORRELATION BETWEEN OLD AND NEW CLASSES OF MOTOR VEHICLE

Old class code	New class code
Class 1	**D**
	DE
	D1
	D1E
Class 2	**C**
	CE
	C1
	C1E
Class 3	**A**
	A1
	B1 (Tricycles and Quadricycles)
Class 4	**B**
	BE
Class 5	**B**Ê

FIFTH SCHEDULE (*Section 12*)

PRESCRIBED FEES

12. (1) A person applying in terms of section 8(2)(b) or (3) of the Act to an issuing officer for a tractor driver's permit or duplicate tractor driver's permit shall transmit with their application and a prescribed fee.

(2) The fee to be remitted to the Registrar by a farmer or miner or their manager or a registering officer in terms of section 8(5) of the Act, shall be a prescribed fee.

(3) A person applying in terms of section 9(1) of the Act to an examiner of a learner's licence shall transmit with their application and a prescribed fee for testing the applicant.

(4) A person applying in terms of section 10(1) of the Act to an examiner for a Certificate of Competency shall transmit—

(a) with their application a fee for testing the applicant in respect of a Certificate of Competency for—

(i) code A or B vehicles a fee of twenty-five United States dollars (US25,00);

(ii) code D1, D1E, C1, C1E or R vehicles a fee of thirty United States dollars (US$30,00);

(iii) code C, CE, D or DE vehicles a fee of forty United States dollars (US$40,00).

(b) upon the successful completion of the test, a production fee of fifteen United States dollars (US$15,00).

(5) A person applying in terms of section 14(1) of the Act to the Registrar shall transmit with their application for—

(a) duplicate learner licence, a fee of fifteen United States dollars (US$15,00);

(b) an international driving permit, a fee of one hundred United States dollars (US$100,00);

(c) search fees, a fee of five United States dollars (US$5,00);

(d) a duplicate driver's licence, a fee of fifteen United States dollars (US$15,00);

(e) an urgent driver's licence, whether original or duplicate, a fee of fifty United States dollars (US$50,00).

(6) An examiner receiving a fee referred to in subsection (3) or (4) shall issue to the applicant a receipt.

(7) A person applying in terms of section 19(1) of the Act to the Registrar for a conversion of a foreign driver's licence shall transmit with their application, a fee of one hundred United States dollars (US$100,00).

(8) The fees stipulated above may be payable in local currency for local drivers at the prevailing interbank rate of the day.

SIXTH SCHEDULE (*Section 19 (1)*)

REPEALED REGULATIONS

Roads and Road Traffic (Drivers Licences) Regulations, 1970, published in Zimbabwe Government Notice No.732 of 1970.

Roads and Road Traffic (Drivers Licences) (Amendment) Regulations, 1972 (No 1), published in Zimbabwe Government Notice No. 880 of 1972.

Roads and Road Traffic (Drivers Licences) (Amendment) Regulations, 1973 (No 2), published in Zimbabwe Government Notice No. 268 of 1973.

Roads and Road Traffic (Drivers Licences) (Amendment) Regulations, 1973 (No 3), published in Zimbabwe Government Notice No. 953 of 1973.

Roads and Road Traffic (Drivers Licences) (Amendment) Regulations, 1976 (No 4), published in Zimbabwe Government Notice No. 562 of 1976.

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